

02:00 PM

25-CIV-01909 DAVID COLLINS VS. FCA US, LLC, ET AL.

LINE 4

DAVID COLLINS
FCA US, LLC

LARRY W. CHAE
LAUREN K. VANDENBURG

PLAINTIFF: DAVID COLLINS'S MOTION TO COMPEL INITIAL DISCLOSURES PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE 871.26 AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

This is a Song-Beverly Consumer Warranty Act action concerning a 2020 RAM 1500. FCA served initial disclosures on July 28, 2025 — comprising, among other things, the owner's manual, warranty booklet, sales brochure, Monroney label, warranty-claim documents, service bulletins, recall documents, and repair-order reports.

Nearly a year later, on June 2, 2026, Collins served a meet-and-confer letter contending FCA's disclosures were deficient and demanding verified written responses, disclosure of FCA's search methodology, and supplemental production.

On July 8, 2026 this Court Ordered the parties to an Informal Discovery Conference before the Civil Commissioner. Both parties violated that Court Order by failing to submit the required statements and the Commissioner continued the Conference and reiterated the Order that the parties submit statements. But Plaintiff again didn't submit a statement (while Defendant did) and Plaintiff sent an attorney to the Conference who lacked knowledge of the underlying dispute. Plaintiff is admonished that its next unexcused violation of Court Orders will result in a significant sanction. Plaintiff was advised that his motion appeared to be not well taken and that he should withdraw it based on the content of the Conference.

Plaintiff did not withdraw the motion, did not file a reply and has never responded to Defendant's arguments. It has not cited to any authority providing for a motion to compel in this context, a requirement of a verification in this context, or responded to Defendant's argument and evidence that the motion is moot. Accordingly the motion is DENIED.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. Monday, September 28, 2026 stating, without argument, the portion(s) of the tentative ruling that the party contests. **However any contest will be heard on October 5, 2026.**

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-02641 KARON REID VS. BWNVT MOTORS, INC., ET AL.

LINE 5

KARON REID
BWNVT MOTORS, INC.

MICHAEL A. KLITZKE
JOHN W. RANUCCI

PLAINTIFF: KARON REID'S MOTION FOR ORDER DEEMING MATTERS ADMITTED FOR BWNVT, MOTORS INC. DBA SERRAMONTE FORD'S FAILURE TO RESPOND TO REQUESST FOR ADMISSION, SET ONE

TENTATIVE RULING:

This motion was continued to November 30, 2026 with agreement of the Plaintiff to facilitate finalizing a settlement.
